

November 09, 2018



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20684

EXPIRATION DATE: 2020-05-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Linde Gas North America LLC
Bridgewater, NJ
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation of DOT 106A500X and DOT 106A500W specification multi-unit tank car tanks (Ton Tanks) that use solid plugs in lieu of pressure relief devices. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
 - d. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 179.300-15 in that solid plugs are used in place of the fusible metal pressure relief devices.

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5. BASIS: This special permit is based on the application of Linde Gas North America LLC dated June 20, 2018 submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonia, anhydrous	2.2	UN1005	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Packagings prescribed are (50) DOT106A500X and (50) DOT 106A500W multi-unit tank car tanks (ton tanks) authorized under DOT-SP 14437 except these tanks are equipped with solid plugs instead of pressure relief devices. The tanks must be in accordance with drawings on file with the OHMS Approval and Permits Division.
- b. OPERATIONAL CONTROLS:
- (1) Prescribed multi-unit tank cars tanks must meet the maximum filling density and service pressure requirements of 49 CFR Part 173.
 - (2) The ton tanks must be stored away from heat sources.
 - (3) Solid plugs are used to replace the pressure relief devices. The plugs must be constructed with a material that is compatible with the hazardous material.
 - (4) After the solid plug is installed, the multi-unit tank car tank must be gas pressure leak tested at 100 psig prior to filling.
 - (5) The solid plugs must be supplied by the manufacturer. The solid plugs must be installed following instructions provided by the multi-unit tank car tank manufacturer.

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(6) The emergency response information must be provided with the shipment and made available via the required emergency response telephone number. Specific instructions must be made available for emergency responders indicating that the containers are not fitted with pressure relief devices. The instructions must provide appropriate methods for mitigation of fire situations involving these containers.

C. MARKING:

(1) Each multi unit tank car tank must be marked "DOT-SP 20684".

(2) Each multi unit tank car tank must be plainly and durably marked "For Export Only" near the special permit number marking.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Kenny Herzog